

25STCV27696 25STCV27696

County: los-angeles

Division: Civil Law and Motion

Department: 732

Hearing date: 2026-07-07

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Case Number: 25STCV27696 Hearing Date: July 7, 2026 Dept: 732

Mayra C. Morales et al. v. Henry Aldubi Mendez, et al.

Tuesday, July 7, 2026

CASE NUMBER: 25STCV27696

UNOPPOSED

Defendant Henry

Aldubi Mendez's Motions to Compel Responses to Form and Special Interrogatories
and Requests for Production from Plaintiff Mayra C. Morales

Facts:

This is an action for motor vehicle negligence. The Complaint alleges as follows. Plaintiffs Mayra C. Morales, Michael T. Alvarez, Uriel G. Ramirez, and Emily E. Alvarez ("Plaintiffs") were injured in a motor vehicle collision on September 23, 2023, at the intersection of Avenue 21 and N. Broadway in Los Angeles, by the negligent operation of a motor vehicle by Defendant Henry Aldubi Mendez ("Defendant"). (Complaint ¶¶ 7–9.)

Procedural History: Plaintiffs

filed the Complaint on September 22, 2025, alleging one cause of action for motor vehicle negligence.

Defendant

filed a cross-complaint on January 5, 2026, alleging four causes of action:

1.

Indemnification

2.

Declaratory Relief – Apportionment of Fault

3.

Declaratory Relief – Full Indemnity

4.

Contribution

Defendant

filed the present motions to compel on June 2, 2026. No opposition has been filed.

Analysis

I.

MOTION TO

COMPEL

A propounding party may demand a responding party to produce documents that are in their possession, custody or control. (Code Civ. Proc., § 2031.010.) A party may likewise conduct discovery by propounding interrogatories to another party to be answered under oath. (Code Civ. Proc. § 2030.010, subd. (a).) The responding party must respond to the production demand either by complying, by representing that the party lacks the ability to comply, or by objecting to the demand. (Code Civ. Proc., § 2031.210.) The responding party must respond to the interrogatories by answering or objecting. (Code Civ. Proc. § 2030.210, subd. (a).) If the responding party fails to serve timely responses, the propounding party may move for an order compelling responses to the production demand and interrogatories. (Code Civ. Proc., §§ 2030.290, 2031.300.)

A

party who fails to serve a timely response to interrogatories or a demand for inspection waives any objection to the demand. (Code Civ. Proc., §§ 2030.290,

2031.300.)

Defendant Henry Aldubi Mendez (“Defendant”)

moves to compel responses to form and special interrogatories and requests for production from Plaintiff Mayra C. Morales (“Plaintiff”). Defendant served the discovery at issue on January 8, 2026, and re-served the same discovery on February 13, 2026, following conference with Plaintiff’s counsel. (Jensen Decl. ¶¶ 2–7.) Responses were due by March 20, 2026. (Jensen Decl. ¶ 11.) No responses have been served despite efforts to reach out to Plaintiff’s counsel by Defendant’s counsel. (Jensen Decl. ¶¶ 14–18.)

Defendant has shown that Plaintiff has not served timely responses to discovery. No opposition to the motions has been filed.

The motions are therefore GRANTED. Responses without objection shall be served within 20 days of this order.

1. Sanctions

The

prevailing party on a motion to compel is generally entitled to monetary sanctions, unless the court “finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc. §§ 2030.290, 2031.300.) Sanctions are also mandatory against a party whose failure to serve responses to requests for admission makes the motion necessary. (Code Civ. Proc. § 2033.280, subd. (c).)

Defendant

seeks a total of \$2,556.00 in sanctions against Plaintiff and her counsel, representing 8.4 hours of attorney work at \$290 per hour., plus two \$60 filing fees. (Jensen Decl. ¶ 20.)

Sanctions

are awarded against Plaintiff and her counsel in the amount of \$2,556.00, to be paid within 20 days of this order.

Superior Court of California

County of Los Angeles

Department 732

MAYRA

C. MORALES, et al.,

Plaintiffs

v.

HENRY ALDUBI MENDEZ, et al.,

Defendants.

Case No.:

25STCV27696

Hearing Date: July 7, 2026

[TENTATIVE] RULING RE:

Defendant Henry Aldubi Mendez's Motions to Compel
Responses to Form and Special Interrogatories and Requests for Production
from Plaintiff Mayra C. Morales.

Defendant

Henry Aldubi Mendez's Motions to Compel Responses to Form and Special
Interrogatories and Requests for Production from Plaintiff Mayra C. Morales are
GRANTED. Responses shall be served, without objections, within 20 days of this
order. Sanctions are awarded against Plaintiff and her counsel in the amount of
\$2,556.00, to be paid within 20 days of this order.

Defendant to give notice.

Dated: July 7, 2026

Hon.

Richard S. Kemalyan

Judge
of the Superior Court